

JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY

Prescribing Document NIWCLANTINST 4200.5

IN ACCORDANCE WITH THE FOLLOWING JUSTIFICATION, AS Procuring Activity Competition Advocate NIWC Atlantic, I HEREBY APPROVE THE EXCEPTION TO FAIR OPPORTUNITY (FOE) PURSUANT TO FAR 16.505(b)(2)(i) (C) Logical Follow-On

CONTRACT NUMBER(S) N65236-19-D-4809	CRM RESERVATION # LSUBP00021-0041	TASK ORDER NUMBER(S)	ESTIMATED DOLLAR VALUE (b) (4)
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1. AGENCY AND CONTRACTING ACTIVITY: Department of the Navy, Naval Information Warfare Center Atlantic

2. NATURE / DESCRIPTION OF ACTION(S)

This is a fair opportunity exception to place a non-competitive Performance Based, Cost-Plus-Fixed-Fee, Level of Effort task order with Scientific Research Corporation (SRC) under a Cyber Mission Engineering (CME) multiple award contract (MAC) N65236-19-D-4809. The term of the proposed task order will be for 6-month Period of Performance (PoP).

3. DESCRIPTION OF SUPPLIES / SERVICES

Navy Information Warfare Command (NIWC) Atlantic is tasked with providing Engineering and Sustainment support to the (b) (7)(E) Program Executive Office (b) (7)(E). This tasking includes technical support for research, development, integration and testing of software for the SSN-8 navigation system used on the (b) (7)(E) and underwater (b) (7)(E) systems. The total estimated Level of Effort (LOE) required for the period of (b) (7)(E).

4. IDENTIFICATION OF EXCEPTION TO FAIR OPPORTUNITY

- ☐ (a) The agency's need for supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.
- ☐ (b) Only one awardee is capable of providing the supplies or services at the level of quality required because the supplies or services ordered are unique or highly specialized.
- ☒ (c) The order must be issued on a sole-source basis in the interest of economy and efficiency, because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.
- ☐ (d) It is necessary to place an order to satisfy a minimum guarantee.
- ☐ (e) The order exceeds the simplified acquisition threshold and statute expressly authorizes or requires purchase from the specified source.

JUSTIFICATION

This requirement is currently supported under SRC's Contract N65236-19-D-4809 Task Order N6523620F3920 which expires 19 March 2025. This order was issued competitively on the CME MAC on 22 October 2019 on an unrestricted basis; receiving two proposals.

The SSN-8 navigation system is a government developed and sustained system of systems that provides operators and technicians with graphical and controls system to include navigational map displays, engine data & displays/controls, video feeds, and communications displays, from other independent systems. The SSN-8 system is used in live combat missions on (b) (7)(E) for (b) (7)(E) operations worldwide. The incumbent contractor, SRC, provides continuous SSN-8 engineering, Configuration Management, software development and integration, testing, Operator & Technician training, cybersecurity Risk Management Framework implementation, repair/program/troubleshoot operator submitted work tickets, and monitoring of these efforts on the current task order.

There is tasking under the current task order that needs to be completed before any potential transition to a different contractor. Taskings that require completion include development, integration, and testing phases on SSN-8 software and ten (10) plus systems and data streams that include programming, application of cybersecurity patches/actions/updates, testing, and version control completion for version 5.2 and Windows 11 upgrade platform 6.0. SRC will need to finish developing, making systematic operational changes, and complete software updates for integrating these (b) (7)(E) systems, protocols, and data streams into the SSN-8 system onboard CCM and CCH platforms to include nautical Global Positioning System and nautical chart systems, (b) (7)(E) directed sensors and information gathering equipment, tactical cameras, tactical radios, (b) (7)(E) data stream protocols, Inertia sensors, and mission planning elements. The planned contract action is necessary in order for SRC to complete these actions and maintain mission readiness of the CCM and CCH. The additional (b) (7)(E) provided by the planned action will allow for completion of the steps required to prepare the software for full implementation on the designated combatant crafts.

Without the integration of the fully developed and tested software, Craft operators would not be supported in a timely manner in the

event of a software/hardware malfunction. It would be a high risk for the craft to be unavailable for mission readiness and on mission actions for CCM/CCH. SRC technicians are able to respond to troubleshooting calls from CCM/CCH deployed teams in a timely manner, and submit the Trouble ticket into Navy Lift for tracking purposes. In addition, they are staffed to schedule and respond to trouble tickets and travel to multiple locations, if required, which minimizes the risk for mission or operational craft downtime. SRC's expertise provides the ability for troubleshooting system errors over the phone reducing the response time. SRC's knowledge on the existing nautical, protocols/messaging, and camera systems integrated into the SSN-8 system, reduces downtime of the operational craft.

Forward deployed service members' lives would be in jeopardy without ensuring properly vetted, trained and experienced engineers and technicians on the SSN-8 and integrated system are able to continue both development and sustainment of software releases 5.2 and earlier while executing continuation of Windows 11 development and deployment of new capabilities. Additionally, it would be high risk to the Government to have to extend the schedule because key milestone dates were missed due to lack of training caused by the learning curve of developing, testing, and deploying SSN-8 hardware and software on CCM and CCH system variants.

5. DETERMINATION OF FAIR AND REASONABLE COST

The proposal will be analyzed in accordance with FAR 15.404. It is anticipated that the government will use various cost/price analysis techniques, including but not limited to: (1) comparison of proposed prices to historical prices paid; (2) comparison of proposed prices with independent government cost estimate amounts; and (3) comparison of proposed prices obtained through market research for the same or similar items, such that the anticipated cost to the government will be fair and reasonable.

6. ANY OTHER FACTS SUPPORTING THE JUSTIFICATION

None.

7. ACTIONS TAKEN TO REMOVE OR OVERCOME BARRIERS THAT LEAD TO THE EXCEPTION TO FAIR OPPORTUNITY

NIWC Atlantic is currently in the process of executing a competitive procurement for engineering and sustainment services for the SSN-8 navigation system via the SeaPort-NxG MAC under PID N65236-24-RFPREQ-LSUBP00004-0153 with a projected award in July 2025. Other than the situation, described herein, future requirements will be competed to the maximum extent practicable.

FAIR OPPORTUNITY EXCEPTION

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TECHNICAL AND REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance, which are included in this justification, and which form a basis for the justification are complete and accurate.

DIVISION HEAD / TIER 2 OR DELEGATE (Last, First, MI)

(b) (6)

DIVISION HEAD / TIER 2 OR DELEGATE SIGNATURE

(b) (6)

NOTE: If FOE is for services, Contracting Officer Representative (COR) must acknowledge by signing this document.

COR NAME (Last, First, MI)

(b) (6)

COR SIGNATURE

(b) (6)

CONTRACTING OFFICER

I certify that this justification is accurate and complete to the best of my knowledge.

☐ Approval ☐ Disapproval (Requirement is ≤\$750K)

☒ Review Only (Requirement is >\$750K)

CONTRACTING OFFICER NAME (Last, First, MI)

Luna, Jacqueline M.

CONTRACTING OFFICER SIGNATURE

LUNA.JACQUELINE.M.1229859516

Digitally signed by LUNA.JACQUELINE.M.1229859516
Date: 2025.02.19 08:58:11 -05'00'

ACTIVITY COMPETITION ADVOCATE (NIWC Atlantic 2.0/2.0A)

☒ Approval ☐ Disapproval (Requirement is ≤\$15M)

☐ Review Only (Requirement is >\$15M)

CONTRACTS TIER 1 OR DEPUTY NAME (<i>Last, First, MI</i>) Cannady, Kelly, P.	CONTRACTS TIER 1 OR DEPUTY SIGNATURE CANNADY.KELLY.P.1242830985 Digitally signed by CANNADY.KELLY.P.1242830985 Date: 2023.03.05 15:16:20 -05'00'
EXECUTIVE DIRECTOR, NIWC ATLANTIC ☐ Approval ☐ Disapproval (Requirement is ≤\$100M) ☐ Review Only (Requirement is >\$100M)	
EXECUTIVE DIRECTOR, NIWC ATLANTIC NAME (<i>Last, First, MI</i>)	EXECUTIVE DIRECTOR, NIWC ATLANTIC SIGNATURE
NAVY SENIOR PROCUREMENT EXECUTIVE ☐ Approval ☐ Disapproval (Requirement is >\$100M)	
NAVY SENIOR PROCUREMENT EXECUTIVE NAME (<i>Last, First, MI</i>)	NAVY SENIOR PROCUREMENT EXECUTIVE SIGNATURE

INSTRUCTION PAGE

Purpose of Form:

- Pursuant to FAR 16.505, each order exceeding the simplified acquisition threshold shall be placed on a competitive basis, unless there is justification for an exception to fair opportunity and is supported by a written determination. The NIWCLANT 4200/10 Fair Opportunity Exception serves as the written determination approved at the appropriate signature level determined by FAR 16.505(b)(2)(i).

Who Signs the Form / Form Required Signatures:

- Contracting Officer Representative (COR) signature required on Services FOEs certifying the facts and representations included in the justification, which form a basis for the justification, are complete and accurate. Per the NAVWAR Acquisition Policies and Procedures Manual (NAPPM), the COR recommends the FOE.

- Division Head/Tier 2 (or delegate) signature required certifying the facts and representations included in the justification, which form a basis for the justification, are complete and accurate. Per the NAPPM, the individual with technical and requirements cognizance is required to concur with the FOE. If the FOE is for Competency Work, the Competency Tier 2 (or delegate) is required to concur with the FOE.

- \$0 - \$750,000: Contracting Officer, (cite activity).

- - The Contracting Officer signature is required on all FOEs serving as the approval of the FOE for all procurement actions up to \$750K.

Form Conditional Signatures:

- Over \$750,000 - \$15 million: Activity Competition Advocate (NIWC Atlantic 2.0/2.0A). The Procuring Activity Competition Advocate signature is required on all FOEs serving as the approval of the FOE for all procurement actions up to \$15M.

- Over \$15 million - \$100 million: Executive Director, NIWC Atlantic. **The Executive Director (ED) signature cannot be delegated.**

- - The Executive Director, NIWC Atlantic signature is required on all FOEs serving as the approval of the FOE for all procurement actions up to \$100M.

- Over \$100 million: Navy Senior Procurement Executive.

- - The Navy Senior Procurement Executive signature is required on all FOEs serving as the approval of the FOE for all procurement actions over \$100M.

ADDITIONAL FORM INFORMATION:

- Purpose of Form: Justification for an exception to Fair Opportunity

- Form Preparation: PR Preparer

- Form Copies: 1

- Form Submission: After the Division Head/Tier 2 (or delegate) reviews/signs the FOE, submit to the NIWC Atlantic Deputy Executive Director (DED) for authorization to proceed.

- Form Location: Forms Library, NIWC LANT Official Forms and Instructions